SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 16

Honorable Panteha E. Saban, Presiding

1. 191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2160

July 31, 2026

9:00 and 9:01 A.M.

RECORDING COURT PROCEEDINGS IS PROHIBITED

ORAL ARGUMENT

If you are contesting the tentative ruling then by 4 PM today you must notify:

(1) The Court by calling **(408) 808-6856**, and

(2) The other side by phone or email that you will appear at the hearing to contest the tentative.

If you fail to notify the court and opposing side by 4 PM then no oral argument will be heard and the tentative ruling becomes the final ruling. (C.R.C. 3.1308(a)(1) & Local Rule 8.E.)

APPEARANCES

The Court encourages in-person appearances for all matters.

The Court discourages remote appearances.

The Court forbids phone-only appearances.

For necessary virtual appearances, you **must use video** and follow **Civil Local Rule 5**.

To access the courtroom, click or copy and paste this link into your internet browser and scroll to Department 16: https://santaclara.courts.ca.gov/online-services/remote-hearings

When using UDC you must *separately register for each case* in which you appear remotely. If you find UDC too cumbersome, *then please come to D16 in person.*

Proposed Orders filed by counsel after the hearing must include the Judicial Council Form EFS-020 Proposed Order Cover Sheet.

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 **1**	25CV469792	Yanxia Li et al vs Fabian Zamora De La Cruz	**Motion: Withdraw as Attorney** Good cause has been established to relieve counsel based on the declaration filed. The Court will sign the order.
9:00 1,2	25CV473552	N G vs Milpitas Aquatic Club et al	**Order on Demurrer (Line 1) & Motion to Strike (Line 2)** *See* Line 1 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:00 3	24CV453655	Jenna Garrett et al vs Ford Motor Company et al	**Summary Judgement & Adjudication** *See* Line 3 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:00 4	23CV417160	Jong Park vs Kuniyoshi Investment, Inc. et al	**Order on Plaintiff's Motion to Compel Defendant KUNIYOSHI INVESTMENT INC to provide further responses to Form Interrogatories, Set Two and to have Request for Admissions, Set One deemed admitted,** *See* Line 4 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:00 5,6	24CV445397	Terry Kwong et al vs Elaine Yang et al	**Motion to Compel** *See* Line 5 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.

9:00 7	22CV394951	Cicelyn Slade vs Asad Warraich et al	**Order on Motion for Order Allowing Wage Garnishment on Non-Debtor Spouse** *See* Line 7 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:00 8	22CV408177	John Roe 1 et al v. 3 Doe et al	**Motion to Substitute Executor & Personal Representative as Plaintiff** *See* Line 8. below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:00 9,10	24CV448826	People of the State of CA, Ex. Rel. Allstate Insurance Company vs Bay Area Injury-Medical Imaging Services, Inc et al	**Order on Motion For Order Determining Allocation of Settlement Proceeds (Line 9) & Motion to Seal Records (Line 10)** The Court's tentative ruling has been sent to the parties via email.
9:00 **11**	25CV465400	Michael Floyd vs Saber Fitness IE, LLC et al	**Hearing: Review** **Determine status of SDT for Kathryn Zorb Re: Attempts to obtain video Surveillance** **(No tentative)**

9:01
Line 1
Case Name: Yanxia Li et al vs Fabian Zamora De La Cruz

Case No.: 25CV469792

Good cause has been established to relieve counsel based on the declaration filed. The Court will sign the order previously filed with the court.

9:00
Line 1-2
Case Name: GN vs Milpitas Aquatic Club et al

Case No.: 25CV473552

Plaintiff G.N. ("Plaintiff") asserts causes of action for sexual harassment, negligence, negligent infliction of emotional distress, intentional infliction of emotional distress, invasion of privacy, and unfair business practices against Defendants Anthony Daly ("Daly"), Milpitas Aquatic Club, Pacific Swimming, USA Swimming, and Does 1 through 20 inclusive. Plaintiff also asserts a cause of action against Defendants Milpitas Aquatic Club, Pacific Swimming, USA Swimming, and Does 1 through 20 for negligent hiring, retention and supervision. Presently before the court are Defendants Pacific Swimming and USA Swimming ("Swim Defendants," or "Defendants")'s demurrer ("Demurrer") to Plaintiff's First Amended Complaint ("FAC") and motion to strike ("Motion to Strike") punitive damages allegations from the FAC.

Swim Defendants' demurrer to Plaintiff's FAC is **OVERRULED** in its entirety. Defendants' motion to strike is **DENIED**.

I. BACKGROUND

Plaintiff G.N. was a competitive swimmer coached by Daly at Milpitas Aquatic Club from 2019 to 2021 and again in 2023. (FAC, ¶ 2.) Daly sexually harassed Plaintiff by sending her sexually explicit and suggestive messages, including when Plaintiff was a minor. (*Ibid.*) Daly was a co-owner of Milpitas Aquatic Club, which operated under the control and/or supervision of Swim Defendants. (FAC, ¶¶ 3, 12.) Swim Defendants are regional and national governing bodies for competitive swimming, respectively: Pacific Swim operates at the regional level under the control and/or supervision of US Swim, which operates nationally. (FAC, ¶¶ 13, 14.)

Daly "engaged in offensive and inappropriate conduct of a sexual nature about the female swimmers" by making comments or jokes about female swimmers' bodies, including how their height or weight affected their swimming skills in a disparaging manner. (FAC, ¶ 22.) Daly made these comments in public group settings, including in front of other teammates, and in team group chats. (*Ibid.*) Daly also inappropriately hugged female swimmers. (FAC, ¶ 23.) Milpitas Aquatic Club, Pacific Swim, and US Swim "knew about this conduct because it was reported to them" but took no disciplinary action and did not prevent Daly from coaching. (*Ibid.*)

The U.S. Center for SafeSport ("SafeSport") is a national nonprofit with jurisdiction over national and regional sports governing bodies, including Swim Defendants. (FAC, ¶ 25.) SafeSport is responsible for investigating sexual abuse allegations. (*Id.* at ¶ 26.) Swim Defendants act as SafeSport's agents when SafeSport investigates such complaints, and they jointly issue any appropriate interim or final discipline relating to that conduct. (*Ibid.*) At the completion of any investigation by SafeSport, Swim Defendants are not prohibited from taking any form of conduct or discipline against a swim coach irrespective of the results of the investigation. (FAC, ¶ 27.) In or around early 2021, SafeSport investigated a complaint against Daly for having watched a minor female athlete in the shower. (FAC, ¶ 24.) The matter was closed within a month without any material discipline. (*Ibid.*)

In December 2023, Plaintiff disclosed to her college swimming coach Matthew Crawford ("Crawford") that Daly had sexually harassed her. (FAC, ¶ 67.) Crawford reported the harassment to Swim Defendants and the San Jose Police Department contacted Plaintiff regarding her report. (FAC, ¶¶ 71, 73.) In April 2024, a representative from SafeSport informed Plaintiff that the case would be forwarded to the Investigations Unit, but that SafeSport could not act until Daly was criminally charged. (FAC, ¶ 86.) SafeSport told Plaintiff that if Daly was not charged or was acquitted, it would conduct its own investigation. (*Ibid.*) The San Jose Police Department arrested Daly after conducting their investigation. (FAC, ¶ 84.) Daly was later indicted in July 2024. (*Ibid.*) Months later, on or around November 15, 2024, US Swim issued a lifetime ban against Daly, permanently revoking Daly's membership and/or declaring Daly permanently ineligible for membership. (FAC, ¶ 87.)

Plaintiff alleges causes of action for (1) sexual harassment, (2) negligence, (3) negligent hiring, retention and supervision, (4) negligent infliction of emotional distress, (5) intentional infliction of emotional distress, (6) invasion of privacy, and (7) unfair business practices against Daly,[1] Milpitas Aquatic Club, Pacific Swimming, USA Swimming, and Does 1 through 20. Plaintiff also asserts a cause of action against Defendants Milpitas Aquatic Club, Pacific Swimming, USA Swimming, and Does 1 through 20 for negligent hiring, retention and supervision. This matter was transferred from the Superior Court of San Francisco County on August 27, 2025, and Plaintiff filed the First Amended Complaint on November 17, 2025. Swim Defendants demurred to Plaintiff's FAC as a whole and specifically, to Plaintiff's cause of action for intentional infliction of emotional distress, on December 30, 2025. Swim Defendants also moved to strike punitive damages from Plaintiff's FAC on December 30, 2025. Plaintiff opposes both the demurrer and the motion to strike. Defendants filed replies to both oppositions.

II. REQUESTS FOR JUDICIAL NOTICE

In support of their demurrer and motion to strike, Swim Defendants request judicial notice of the following documents: (1) Plaintiff's First Amended Complaint, (2) "SafeSport Code for the U.S. Olympic and Paralympic Movement Effective July 1, 2024," (3) "Noteworthy Revisions 2024 SafeSport Code for the U.S. Olympic and Paralympic Movement," (4) "Confidentiality and Protective Order Pursuant to Stipulation By the Parties entered on October 5, 2025," and (5) "36 U.S.C. §220541 - Designation of United States Center for SafeSport." (Request for Judicial Notice, p. 2:8-24.) Plaintiff opposes.

The court **GRANTS** Swim Defendants' request for judicial notice of Plaintiff's First Amended Complaint but notes that the request is unnecessary where, as here, the court is required to consider the contents of the plaintiff's complaint in ruling on a demurrer. (Evid. Code, § 452, subd. (d); Code Civ. Proc., § 430.10.)

Defendants seek judicial notice of "SafeSport Code for the U.S. Olympic and Paralympic Movement Effective July 1, 2024" and "Noteworthy Revisions 2024 SafeSport Code for the U.S. Olympic and Paralympic Movement" under Evidence Code section 452 subdivision (b). Plaintiff objects on the basis that the contents of a

[1] The third cause of action for negligent hiring, retention and supervision is asserted only against Defendants Milpitas Aquatic Club, Pacific Swimming, USA Swimming, and Does 1 through 20.

document or piece of evidence cannot be judicially noticed at the demurrer phase, the document sought is irrelevant and would be more prejudicial than probative. “[T]he truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable[.]” (*Fremont Indemnity Co. v. Fremont General Corp.,* (2007) 148 Cal.App.4th 97, 113.) However, section 220541 of Title 36 of the United States Code delegates to SafeSport the responsibility to “develop training, oversight practices, policies, and procedures to prevent the abuse…of amateur athletes,” and establishes that those policies and procedures “shall apply as though they were incorporated in and made a part of section 220524 of this title.” (36 U.S.C. § 220541(a)(1)(C), (b).) Federal public statutory law is a required subject of judicial notice, and here, federal public statutory law explicitly incorporates the SafeSport regulations Defendants seek judicial notice of. (See Evid. Code, § 451, subd. (a) [requiring judicial notice of federal statutory law].) However, the “Noteworthy Revisions” document is a summary document that does not itself establish policies and procedures but rather purports to summarize revisions made to the code effective July 1, 2024 and provide accompanying rationale for those changes. The “Noteworthy Revisions” document is not a proper subject for judicial notice because its contents are reasonably subject to dispute. The court **DENIES** Defendants’ request for judicial notice of “Noteworthy Revisions 2024 SafeSport Code for the U.S. Olympic and Paralympic Movement.”

The court also notes Plaintiff’s argument that the documents are irrelevant because both are largely outside the relevant time period; however, July through November 2024 covers the time between Daly’s arrest and Swim Defendants’ ban of Daly and is thus relevant to Plaintiff’s allegations. (FAC, ¶¶ 99, 100.) The court **GRANTS** Defendants’ request for judicial notice of “SafeSport Code for the U.S. Olympic and Paralympic Movement Effective July 1, 2024.”

Defendants seek judicial notice of “Confidentiality and Protective Order Pursuant to Stipulation By the Parties entered on October 5, 2025” to prove “Plaintiff is only aware of this prior complaint pursuant to a prior protective order entered by this Court on October 5, 2025.” (Demurrer, p. 12, fn. 1.) Plaintiff objects on the basis that the request falls outside the scope of proper use of requests for judicial notice and would be more prejudicial than probative. The court denies Defendants’ request for judicial notice because Plaintiff’s knowledge of the 2021 incident is not relevant to the outcome of this demurrer. The court **DENIES** the request for judicial notice of “Confidentiality and Protective Order Pursuant to Stipulation by the Parties entered on October 5, 2025.” (See *Ross v. Seyfarth Shaw LLP* (2023) 96 Cal.App.5th 722, 745 [authority to take judicial notice subject to the limitation that the proffered evidence be relevant].)

Finally, Defendants seek judicial notice of “36 U.S.C. §220541 - Designation of United States Center for SafeSport.” The court **GRANTS** Defendants’ request for judicial notice of this code section. (See Evid. Code, § 451, subd. (a) [requiring judicial notice of federal statutory law].)

III. DEMURRER

A. Legal Standard

The function of a demurrer is to test the legal sufficiency of a pleading. (*Trs. Of Capital Wholesale Elec. Etc. Fund v. Shearson Lehman Bros.* (1990) 221 Cal.App.3d 617, 621.) Consequently, “[a] demurrer reaches only to the contents of the pleading and such matters as may be considered under the doctrine of judicial notice.” (*Mathews v.*

Becerra (2019) 8 Cal.5th 756, 762, internal citations and quotations omitted; see also Code Civ. Proc., § 430.30, subd. (a).) "It is not the ordinary function of a demurrer to test the truth of the plaintiff's allegations or the accuracy with which he describes the defendant's conduct. … Thus, … the facts alleged in the pleading are deemed to be true, however improbable they may be." (*Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 958, internal citations and quotations omitted.

In ruling on a demurrer, the allegations of the complaint must be liberally construed, with a view to substantial justice between the parties. (*Glennen v. Allergan, Inc.* (2016) 247 Cal.App.4th 1, 6.) Nevertheless, while "[a] demurrer admits all facts properly pleaded, [it does] not [admit] contentions, deductions or conclusions of law or fact." (*George v. Automobile Club of Southern California* (2011) 201 Cal.App.4th 1112, 1120.)

B. Discussion

i. Demurrer on Grounds that Swim Defendants Had No Ability to Investigate Daly Due to SafeSport's Exclusive Jurisdiction

Swim Defendants demur to the FAC as a whole on the basis that Plaintiff cannot establish their liability for Daly's conduct or negligence in failing to take action earlier "because Swim Defendants were legally forbidden by the federal government from interfering or influencing while the Center was conducting its investigation." (Demurrer, p. 11:9-12.)

Plaintiff alleges that Swim Defendants knew Daly made offensive sexual comments about female swimmers, hugged female athletes inappropriately, and that he had been investigated in 2018 for watching a minor female in the shower, and that Swim Defendants failed to investigate, remove, suspend, or otherwise discipline Daly. (FAC, ¶ 96.) Plaintiff further alleges that Swim Defendants failed to pursue any interim discipline during the SafeSport investigation, and their eventual disciplinary action was unjustifiably delayed. (FAC, ¶¶ 98-100.) Defendants state that under federal law, only SafeSport has jurisdiction to investigate claims of sexual misconduct, and national governing bodies like Swim Defendants are barred from interfering with or influencing SafeSport investigations. (Demurrer, p. 10:26-28.) "Swim Defendants contend that 36 U.S.C. §220541(f)(4)(A) barred their ability to ban, discipline, or otherwise take any action against Daly, the alleged perpetrator coach, until at least the Center revised its Code in July 2024." (Demurrer, p. 4:23-25.)

Section 220541 of Title 36 of the United States Code establishes SafeSport as an independent national safe sport organization with the jurisdiction over each national governing body to investigate and resolve abuse allegations. (36 U.S.C. § 220541(a)(1).) "The corporation and the national governing bodies shall not interfere in, or attempt to influence the outcome of, an investigation." (36 U.S.C. § 220541(f)(4)(A).) However, federal law does not preclude Swim Defendants from pursuing interim discipline prior to SafeSport investigation. "Nothing in this section shall be construed to limit the ability of a national governing body to impose an interim measure to prevent an individual who is the subject of an allegation of sexual abuse from interacting with an amateur athlete prior to [SafeSport]exercising its jurisdiction over a matter." (36 U.S.C. § 220542(b).)

Defendants do not cite any precedential authority establishing that the above code section prevented them from pursuing any action against Daly. The statute establishes that Defendants were barred from interfering with or attempting to influence the outcome of SafeSport's investigation of Daly, but not that Defendants were explicitly prohibited by statute from taking disciplinary action against *Daly* while SafeSport investigated. The statute gives SafeSport the power to "impos[e] interim measures or sanctions on an individual before an opportunity for a hearing or arbitration," but does not make this power exclusive or state that *only* SafeSport can impose interim measures during an investigation. (36 U.S.C. § 220541(a)(2)(A).) Additionally, as stated above, the statute expressly gives national governing bodies the authority to impose interim protective measures prior to SafeSport's exercise of jurisdiction. (36 U.S.C. § 220542(b).) The statute does not define the meaning of "prior to … exercise of jurisdiction," and the phrase could mean assumption of jurisdiction through initiating investigation or it could mean exercise of jurisdiction through issuing a ruling. In sum, the language of the statute is ambiguous as to Defendants' ability to take disciplinary action and does not clearly prohibit Defendants from banning, discipling, or otherwise taking any action against Daly as they claim.

Defendants further claim that "[i]t wasn't until a rule change in the SafeSport Code in July 2024 that national governing bodies like USA Swimming could enact disciplinary measures while a SafeSport investigation was ongoing." (Demurrer, p. 11:1-2.) The FAC alleges that Defendants learned of Daly's abuse of Plaintiff in late 2023 and that Defendants failed to take action until November 2024. (FAC, ¶¶ 71, 73, 87.) Defendants evidently concede that they were not prohibited from enacting disciplinary measures against Daly between July 2024 through November 2024. Even if Defendants were correct that they were prohibited from taking action until July 2024, the FAC's allegations include the time period between July 2024 and November 2024. A demurrer cannot be used to attack a portion of a cause of action. (*Pointe San Diego Residential Community, L.P. v. Procopio, Cory, Hargreaves & Savitch, LLP* (2011) 195 Cal.App.4th 265, 274.) Thus, the court cannot sustain Defendants' demurrer on the basis that they were prohibited from acting based on SafeSport Code revisions effective July 2024.

Defendants' demurrer to Plaintiff's FAC on the grounds that Swim Defendants could not investigate or take action under federal law is **OVERRULED**.

ii. Demurrer on Grounds that FAC Fails to Allege that USA Swimming and Pacific Swimming Knew or Should Have Known About Daly's Harassment Prior to 2024

Swim Defendants demur to the FAC as a whole on the basis that Plaintiff fails to allege that Swim Defendants "actually knew about the harassing messages, at least until Coach Crawford allegedly reported the incident in December 2023," and that "Swim Defendants never had an opportunity to discover the harassment until Coach Crawford got involved in December 2023." (Demurrer, p. 11:19-21, 23-25.)

A demurrer cannot be used to attack a portion of a cause of action. (*Pointe San Diego Residential Community, L.P. v. Procopio, Cory, Hargreaves & Savitch, LLP*, *supra*, 195 Cal.App.4th at p. 274.) As mentioned above, the FAC alleges that Defendants learned of Daly's abuse of Plaintiff in late 2023 and that Defendants failed to take action until November 2024. (FAC, ¶¶ 71, 73, 87.) Defendants' demurrer thus only attacks a portion of Plaintiff's causes of action, as the FAC includes allegations about Defendants' conduct in 2024.

Defendants' demurrer to Plaintiff's FAC on the grounds that the FAC fails to allege that Swim Defendants knew about Daly's harassment prior to 2024 is **OVERRULED**.

iii. Demurrer to Cause of Action for Intentional Infliction of Emotional Distress

In the alternative, Defendants defer to the FAC's cause of action for intentional infliction of emotional distress and argue that the FAC does not allege extreme or outrageous conduct. (Demurrer, pp. 13:5-27, 14:1-6.)

The FAC alleges that Swim Defendants' knowledge and indifference to Daly's sexual harassment of Plaintiff, as well as conduct of negligently supervising Daly and putting him in positions of authority, was "oppressive, malicious, and despicable in that it was intentional and done in conscious disregard of [Plaintiff's] rights and safety." (FAC, ¶¶ 170-172, 175.)

To state a cause of action for intentional infliction of emotional distress a plaintiff must show: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 833.) "In order to avoid a demurrer, the plaintiff must allege with great specificity the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Ibid*., internal citation and quotation marks omitted.) "If properly pled, a claim of sexual harassment can establish the outrageous behavior element of a cause of action for intentional infliction of emotional distress." (*Haberman v. Cengage Learning, Inc.* (2009) 180 Cal.App.4th 365, 389, internal citation and quotation marks omitted.)

Here, the FAC alleges a cause of action for sexual harassment which Swim Defendants do not demur to, thus sufficiently alleging that Swim Defendants' conduct was outrageous.

Swim Defendants' demurrer to Plaintiff's FAC is **OVERRULED** in its entirety.

IV. MOTION TO STRIKE

A. Legal Standard

A court may strike out any irrelevant, false, or improper matter asserted in a pleading. (Code Civ. Proc., § 436, subd. (a).) A court may also strike out all or any part of a pleading not drawn or filed in conformity with the laws of the State of California. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).) The court's decision to strike the petition pursuant to section 436 is discretionary. (See Code Civ. Proc., § 436 ["The court may . . . strike"].)

B. Punitive Damages

Swim Defendants move to strike punitive damages from Plaintiff's FAC because the FAC "fails to support the claim that the Swim Defendants had advanced knowledge of the alleged abuse and/or that the Swim Defendants ratified Daly's conduct," and Swim Defendants did not act with oppression, fraud or malice as required by Civil Code section 3294. (Motion to Strike, p. 4:5-6.)

Civil Code section 3294 subdivision (b) states that an employer cannot be liable for punitive damages for the actions of an employee unless "the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice." (Civ. Code, § 3294, subd. (b).) "With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (*Ibid.*) Claims for punitive damages cannot rely on entirely conclusory allegations and must be supported by facts. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 168 [striking punitive damages request from a complaint that failed to sufficiently allege corporate defendant's advance knowledge, authorization, or ratification].)

Here, the FAC alleges that Daly was a co-owner of Milpitas Aquatic Club, and was an employee, and/or agent of Swim Defendants, and/or was under their complete control and/or direct supervision. (FAC, ¶¶ 3, 11, 12.) The FAC further alleges that Swim Defendants knew Daly made offensive sexual comments about female swimmers, hugged female athletes inappropriately, and that he had been investigated in 2018 for watching a minor female in the shower, and that Swim Defendants failed to investigate, remove, suspend, or otherwise prevent Daly from continuing to coach female athletes. (FAC, ¶¶ 28, 96.) In addition, the FAC alleges that Swim Defendants allowed Daly to coach and serve in supervisory positions in 2024 while Daly was actively being investigated. (FAC, ¶¶ 99-101.) This is sufficient to allege that Swim Defendants acted with conscious disregard for the safety of female athletes being coached by Daly. (See *Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1159 [employer who had advance knowledge that an employee was likely to sexually harass other employees and failed to take reasonable steps to prevent that employee's misconduct had exhibited conscious disregard for the rights and safety of others giving rise to punitive damages].)

Defendants argue that Plaintiff cannot prove ratification because Swim Defendants banned Daly for life and were barred from acting or unable to act any earlier. (Demurrer, pp. 10:27-28, 11:8-16.) "[R]atification generally occurs where, under the particular circumstances, the employer demonstrates an intent to adopt or approve oppressive, fraudulent, or malicious behavior by an employee in the performance of his job duties. The issue commonly arises where the employer or its managing agent is charged with failing to intercede in a known pattern of workplace abuse, or failing to investigate or discipline the errant employee once such misconduct became known." (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 726.)

Here, the FAC alleges that Swim Defendants allowed Daly to coach and serve in supervisory positions in 2024 when Swim Defendants knew that Daly was being investigated for sexual misconduct. (FAC, ¶¶ 99-101.) Thus, the FAC alleges that Swim Defendants knew about Daly's improper conduct and failed to intercede or discipline him.

Civil Code section 3294 subdivision (c)(1) defines "malice" as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) Defendant argues that it could not have acted with malice because it banned Daly for life, and the "delay was due to [SafeSport]'s investigation, which was outside of Swim Defendants' control. Such delay was not a conscious disregard – moreover, it was neither malicious, fraudulent or oppressive. At most, it was negligence, which cannot sustain a claim for punitive damages." (Motion to Strike, p. 8:13-17.) As described above, Plaintiff has adequately alleged that Defendants acted with a conscious disregard of the rights or safety of others. Plaintiff is not required to plead that Swim Defendants' conduct was willful or that an agent of Swim Defendants was personally guilty of oppression, fraud or malice. (See *Weeks v. Baker & McKenzie*, *supra*, 63 Cal.App.4th at p. 1137 ["California's punitive damages statute, Civil Code section 3294, states the general rule that punitive damages may be awarded only upon a showing that the defendant was guilty of oppression, fraud or malice. Subdivision (b), however, governs awards of punitive damages against employers, and permits an award for the conduct described there without an additional finding that the employer engaged in oppression, fraud or malice."].)

Accordingly, the motion to strike punitive damages is **DENIED**.

V. CONCLUSION

Swim Defendants' demurrer to Plaintiff's FAC is **OVERRULED** in its entirety. Defendants' motion to strike is **DENIED**.

IT IS SO ORDERED.

Date: July 31, 2026

Hon. Panteha E. Saban
Superior Court of the State of California,
County of Santa Clara

<u>Line 3</u>
Case Name: Jenna Garrett et al vs Ford Motor Company et al

Case No.: 24CV453655

I. INTRODUCTION

Defendant, Ford Motor Company ("Ford") moves for summary judgment / summary adjudication on the following grounds:

- Causes of action 1 through 3 are barred since Plaintiffs did not present the Subject Vehicle for a single repair within warranty;
- The second cause of action fails since the repair orders show a total time in service of no more than one day;
- The third cause of action fails since the repair records contain no evidence the Ford failed to make service literature or replacement parts available to its authorized repair facilities;
- The fourth cause of action fails since Plaintiffs did not present the Subject Vehicle

for any repairs during the first year of ownership;

- The sixth cause of action fails since there is no evidence showing the Subject Vehicle was manufactured with a "Transmission Defect" and/or Ford knew of this defect and affirmatively concealed it from Plaintiffs to induce their purchase.

(Amended Notice of Motion at 1:6-13)

Ford's unopposed motion came on for hearing on July 31, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

II. FACTUAL ALLEGATIONS

On October 22, 2017, Plaintiffs entered into a warranty contract with Ford for a 2017 Ford Escape vehicle identification number 1FMCU9GD0HUE74884 ("Subject Vehicle"), which was manufactured and/or distributed by Defendant FORD. The contract warrantied the Subject Vehicle "bumper-to-bumper", including but not limited to powertrain, emission, etc. (Complaint ¶¶ 7-8)

Prior to Plaintiffs' purchase, Ford knew vehicles equipped with the same 6-speed transmission, as installed in the Subject Vehicle, suffered from one or more defects that caused hesitation, delayed acceleration, hard shifting, jerking, shuddering, surging and/or inability to control the vehicle's speed, symptoms requiring reprogramming of the transmission control module ("TCM") and/or powertrain control module ("PCM"). ("Transmission Defect") Ford acquired this knowledge through various sources of information, including but not limited to pre-production testing, consumer complaints, dealership repair orders, and testing conducted by Ford in response to consumer complaints. (Complaint ¶¶ 53 -54)

However, Ford and its agents actively concealed the Transmission Defect and failed to disclose it to the Plaintiffs at the time of their purchase or thereafter. Had Plaintiffs known the Subject Vehicle and its transmission were defective at the time of sale, they would not have purchased it. (Complaint ¶¶ 55 -56)

Plaintiffs presented the Subject Vehicle to Ford's authorized repair facility for repairs. FORD and its representative failed to commence the service or repairs within a reasonable time and failed to repair the Subject Vehicle to conform to the applicable warranties. (Complaint ¶ 33)

Plaintiffs initiated this action on December 10, 2024, alleging causes of action for (1) Violation of Civil Code section 1793.2, subdivision (d); (2) Violation of Civil Code section 1793.2, subdivision (b); (3) Violation of Civil Code section 1793.2, subdivision (a)(3); (4) Breach of the Implied Warranty of Merchantability; (5) Negligent Repair; and (6) Fraudulent Inducement – Concealment.

III. LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Code. Civ. Proc. § 437c, subdivision (c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.

(*Adler v. Manor Healthcare Corp. (1992)* 7 Cal.App.4th 1110, 1119.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 67, citing *FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 381-382.)

As to each claim framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (Code. Civ. Proc. § 437c(p)(2); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1520.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence that is admissible under the rules of evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

"On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. [Citation.] Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial." (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839.) Further, "the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. [Citation.] Nor may the trial court grant summary judgment based on the court's evaluation of credibility. [Citation.]" (*Id.* at p. 840.)

IV. ANALYSIS

A. First Cause of Action - Violation of Civil Code § 1793.2(d)

The Song-Beverly Consumer Warranty Act regulates warranty terms and imposes service and repair obligations on manufacturers who make express warranties. (Civ. Code § 1793.2) "A plaintiff pursuing an action under the Act has the burden to prove that (1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use, value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element)." (*Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101.)

Citing *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, Ford's position, is that all three elements are absent in Plaintiffs' claims since the Subject Vehicle was never presented for a warranty repair for a nonconformity. (Motion at 11:11-26) Ford submits supporting evidence establishing:

- The Subject Vehicle was purchased on October 22, 2017, as new, with 240 miles on the odometer. (Garcia Decl. Ex. A.)
- The warranties include a 3-year/36,000 miles "bumper-to-bumper" warranty and a 5-year/60,000 miles powertrain warranty. (Garcia Decl. Ex. C.)
- The Subject Vehicle was presented for routine maintenance on June 28, 2018,

February 18, 2019, August 2, 2019, December 2, 2019, and March 21, 2023. (Garcia Decl. Exhibits G-J)

- The vehicle was presented for actual customer complaints only on August 22, 2023 (81,733 miles — engine light, rough idle, no-start) and November 15, 2024 (95,252 miles — check engine light, repair declined). Both visits were well outside of warranty. (Garcia Decl. Exhibits M, N)
- The only within-warranty presentations (excluding routine maintenance) were for Recall 19B37 on June 9, 2020, at 36,428 miles, for Power Control Module ("PCM") reprogramming that was completed in three days, and Recall 22S43 on August 22, 2023, at 81,733 miles to replace bushing and cap. (Garcia Decl. Exhibits K, M; Kemnitz Decl. ¶¶ 11,12, 16)
- The Subject Vehicle was not experiencing any conditions related to the powertrain control module when it was presented on June 9, 2020, for Recall 19B37. (Garcia Decl. Exhibit K; Kemnitz Decl. ¶ 12)

Ford characterizes Recalls as proactive measures taken to address potential issues that may arise and do not reflect actual problems or nonconformities with the specific vehicle. Ford cites two federal district court decisions for this characterization. (Motion at 11:14-16) However, decisions by district courts have no binding effect on this Court's determination.

Here, Plaintiffs specifically allege a "Transmission Defect" that included symptoms requiring reprogramming of the transmission control module ('TCM') and/or powertrain control module ('PCM'). (Complaint ¶ 53.) Ford's Recall 19B37 directly implicates the very type of defect that is alleged in the complaint. Ford provides no evidence demonstrating what diagnostic procedures, if any, Heritage Ford performed before the recall service to determine whether the vehicle was experiencing symptoms related to the recall. The repair order itself is not included in Ford's evidence to demonstrate that the vehicle was asymptomatic.

Liberally construing the evidence in support of Plaintiffs, as the Court must, the Court can reasonably infer from the record that Recall 19B37 is counted as a warranty presentation. Nonetheless, this constitutes as one repair opportunity. Under *Silvio*, the manufacturer is not required to replace a vehicle or make restitution "if it has had only one opportunity to repair the vehicle." (*Silvio, supra*, 109 Cal.App.4th at 1208.)

On this record, Ford has met its initial burden. The undisputed evidence shows no in-warranty presentation for a customer-reported nonconformity, and at most one proactive recall, which Ford was not given an opportunity to address a second time.

B. Second Cause of Action - Violation of Civil Code § 1793.2(b)

Civil Code § 1793.2(b) provides that when goods "do not conform with the applicable express warranties," service or repair "shall be commenced within a reasonable time" and "the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days." (Civ. Code § 1793.2(b).)

Ford argues: (1) the Subject Vehicle was never presented for a warranty-related nonconformity; and (2) even considering the Recall 19B37 visit, the Subject Vehicle was at the dealership for only three days at most. (Motion at 12:4-8)

The 30-day clock under § 1793.2(b) is triggered only when goods do not conform with the applicable express warranties. If no nonconformity was presented during warranty, there could be no violation of the 30-day repair obligation. Moreover, even assuming the recall triggered the provision, three days are well under 30. Plaintiffs allege the vehicle was not repaired within 30 days, (Complaint. ¶ 33) but the undisputed repair records show no service visit approaching that duration. (Garcia Decl. Exhibits G-N)

On this record, Ford has met its initial burden of showing warranty repairs were completed in compliance with Civil Code § 1793.2(b).

C. Third Cause of Action - Violation of Civil Code § 1793.2(a)(3)

Civil Code § 1793.2(a)(3) requires manufacturers to "[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." (Civ. Code, § 1793.2(a)(3).)

Ford argues that neither the vehicle repair orders nor Plaintiffs' document production provide any evidence it failed to make service literature and replacement parts available to authorized service and repair facilities. (Motion at 12:9-11) Ford cites the Garcia Declaration Exhibits F, G-N, (repair orders and document production) as supporting this negative fact.

Ford has shifted the burden by pointing to the absence of evidence. The repair orders do not refer to any instance where a repair was delayed or incomplete due to unavailability of parts or literature. Plaintiffs' 38-page document production similarly contains no such evidence. (Garcia Decl. Exhibit F)

On this record, Ford has met its initial burden by demonstrating Plaintiffs cannot show evidentiary support for their claim.

D. Fourth Cause of Action – Breach of the Implied Warranty of Merchantability (CIV. CODE, § 1791.1; § 1794; § 1795.5)

The implied warranty of merchantability requires that goods "[a]re fit for the ordinary purposes for which such goods are used." (Civ. Code, § 1791.1(a)(2).) The duration of the implied warranty of merchantability "shall be coextensive in duration with an express warranty which accompanies the consumer goods" but "in no event shall such implied warranty have a duration of less than 60 days nor more than one year following the sale of new consumer goods to a retail buyer." (Civ. Code, § 1791.1(c).)

Ford's argument for summary judgment on the implied warranty claim rests on the undisputed fact that Plaintiffs did not present the vehicle for any concern other than routine maintenance until June 9, 2020, approximately 2.5 years after the October 22, 2017, purchase.

A breach of implied warranty does not necessarily require presentation to a repair facility. The implied warranty is breached if the vehicle was sold with a latent defect rendering it unfit for ordinary use, even if the defect did not manifest symptoms until later. Plaintiffs allege the vehicle was sold with "one or more latent defect(s)" and was "not fit for the ordinary purposes for which such goods are used." (Complaint. ¶ 43.) However, a latent defect existing at sale does not establish the vehicle was unmerchantable during the first year unless that defect manifested in a way that made the vehicle unfit for ordinary use during that period. The fact that Plaintiffs continued to drive the vehicle and presented it only for routine maintenance during the first year strongly suggests the vehicle was functioning for its ordinary purpose—transportation—during the implied warranty period. Without evidence showing the vehicle failed to perform its ordinary function during the statutory period, Plaintiffs cannot establish a breach of implied warranty.

On this record Ford has met its initial burden by demonstrating that no service needs arose during the one-year period, thereby negating the merchantability element.

E. Sixth Cause of Action – Fraudulent Inducement (Concealment)

"'[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.' [Citation]." (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 868.)

Ford argues that Plaintiffs' discovery responses are factually devoid, providing no facts, persons, or documents to support the fraud claim. In response to Ford's Special Interrogatory No. 13 requesting all facts supporting the fraudulent concealment cause of action, Plaintiffs responded only by referring to "Plaintiff's Complaint and the Subject Vehicle's repair history," stating they require deposition testimony and documents from Ford's person most knowledgeable, and citing Code of Civil Procedure section 2030.230. Similarly, Interrogatory No. 14 requesting identification of all persons with knowledge elicited only generic references to "Defendant; Defendant's agents, representatives, and employees" without naming any specific individuals. ((Motion at 14:7-15:3; Garcia Decl. Exhibits D & E)

Additionally, Plaintiffs' 38-page document production contains only the sales contract, vehicle registration, repair orders, insurance declarations, and a Kelley Blue Book pricing report. None of these documents provide evidence that Ford had pre-sale knowledge of transmission defects in the specific vehicle or in 2017 Ford Escapes generally, or that Ford concealed such knowledge from Plaintiffs. The repair orders show post-sale service history but do not demonstrate Ford's pre-sale knowledge or concealment. (Garcia Decl. Exhibits F-N)

The complaint alleges Ford knew the 6-speed transmission had defects causing hesitation, harsh shifting, jerking, shuddering, and other symptoms, and that Ford acquired this knowledge through pre-production testing, early consumer complaints, aggregate warranty data, and other internal sources not available to consumers. (Complaint ¶¶ 53 -54) However, Plaintiffs have not identified any documents, witnesses, or specific facts supporting these allegations beyond the conclusory statements in the complaint itself.

Under California law, a moving defendant may rely on factually devoid discovery responses to shift the burden, using them as evidence that the plaintiff does not possess and cannot reasonably obtain needed evidence. Once the burden shifts as a result of the factually devoid discovery responses, Plaintiffs must set forth the specific facts which prove the existence of a triable issue of material fact." (See, *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590.) Plaintiffs have failed to do so.

IV. CONCLUSION

Based on the foregoing, Ford’s motion for summary judgment against the complaint is GRANTED.

Date: July 31, 2026

Hon. Panteha E. Saban
Superior Court of the State of California,
County of Santa Clara

Line 4
Case Name: Jong Park vs Kuniyoshi Investment, Inc. et al

Case No.: 23CV417160

I. BACKGROUND

Plaintiff Jong Park ("Plaintiff") moved to compel responses to Requests for Admission, Set One, and Form Interrogatories, Set Two, and sought monetary sanctions based on Kuniyoshi Investment's ("Defendant") failure to serve timely responses.

On or about October 23, 2025, Plaintiff served Requests for Admission, Set One, and Form Interrogatories, Set Two. The instant motion was filed and served on January 13, 2026.

On or about April 27, 2026, more than three months after the motion was filed and served, Defendant, KUNIYOSHI INVESTMENT INC., served responses to Requests for Admission, Set One, and Form Interrogatories, Set Two. Defendant failed to file any written opposition to Plaintiff's Motion within the time required by California Code of Civil Procedure. Defendant offered no justification for its delay in responding to the discovery requests.

II. LEGAL STANDARD

A. Standard for Compelling Discovery Responses

When a party to whom interrogatories are directed fails to serve a timely response, the party propounding the interrogatories may move for an order compelling response to the interrogatories. (Cal Code Civ Proc § 2030.290.) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Cal Code Civ Proc § 2030.290.)

If a party to whom requests for admission are directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010). (Cal Code Civ Proc § 2033.280.) The court shall make this order unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. (Cal Code Civ Proc § 2033.280.) It is mandatory that the court impose a monetary sanction on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion. (Cal Code Civ Proc § 2033.280, Cal Code Civ Proc § 2033.280.)

B. Effect of Failure to Oppose a Motion

The effect of a party's failure to oppose a motion is to deem the moving papers meritorious and grant the motion. The appellate court in *Sierra Craft, Inc. v. Magnum Enterprises, Inc.* applied the principle that failure to oppose a motion may result in the court granting the motion, although it clarified that statutory procedural requirements remain mandatory. (*Sierra Craft, Inc. v. Magnum Enters., Inc.* (1998) 64 Cal. App. 4th 1252.) While local rules or practices may treat failure to oppose as a waiver of objections or an admission that the motion is meritorious, these rules cannot override statutory requirements.

Where a motion turns on the failure to comply with statutory discovery obligations rather than on evidentiary showings, the absence of opposition confirms that the moving party has established the necessary elements: proper service, failure to respond, and lack of substantial justification.

C. Mandatory Nature of Discovery Sanctions

Monetary sanctions under the Civil Discovery Act are mandatory, not discretionary, when a party's failure to serve timely responses necessitates a motion to compel. The statute provides that the court "shall" impose a monetary sanction unless the party subject to the sanction acted with substantial justification or other circumstances make the imposition of the sanction unjust. (Cal Code Civ Proc § 2023.030, Cal Code Civ Proc § 2023.030.) The use of the mandatory term "shall" leaves no room for judicial discretion when the statutory conditions are met. (Cal Code Civ Proc § 2033.280, Cal Code Civ Proc § 2033.280.)

Section 2023.030 authorizes the court to impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. (Cal Code Civ Proc § 2023.030, Cal Code Civ Proc § 2023.030.) If a monetary sanction is authorized by any provision of the Discovery Act, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Cal Code Civ Proc § 2023.030.)

D. Sanctions Despite Eventual Compliance

Late compliance with discovery obligations does not excuse the failure to serve timely responses or defeat the moving party's entitlement to sanctions. When a party files a motion to compel based on the failure to serve timely responses, that motion is "necessitated" by the responding party's failure, and sanctions attach at that moment. The statutory language in Section 2033.280(c) makes clear that sanctions are mandatory when the failure to serve a timely response "necessitated this motion." (Cal Code Civ Proc § 2033.280, Cal Code Civ Proc § 2033.280.)

The fact that a party subsequently provides responses—whether before or after the motion is filed—does not eliminate the need for the motion that was already required. The propounding party has already incurred the expense of preparing and filing the motion due to the responding party's statutory violation. To deny sanctions in such circumstances would undermine the Discovery Act's purpose of ensuring timely compliance and would reward dilatory conduct.

Section 2033.280(c) specifically addresses the scenario where responses are served before the hearing, but only for purposes of determining whether the matters should be deemed admitted—not for purposes of sanctions. The statute provides that the court shall order matters deemed admitted "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Cal Code Civ Proc § 2033.280.) However, the very next sentence states: "It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Cal Code Civ Proc § 2033.280, Cal Code Civ Proc § 2033.280.) The statute draws a clear distinction: eventual compliance may prevent matters from being deemed admitted, but it does not prevent the imposition of sanctions.

Similarly, for interrogatories, Section 2030.290(c) requires the court to impose monetary sanctions against any party who unsuccessfully makes or opposes a motion to compel unless substantial justification or unjust circumstances exist. (Cal Code Civ Proc § 2030.290.) A party who forces the propounding party to file a motion by failing to serve timely responses, and who then belatedly serves responses, has "unsuccessfully opposed" the motion in substance—the motion achieved its objective of securing responses, confirming that it was meritorious and necessary.

III. ANALYSIS

Plaintiff properly served Requests for Admission, Set One, and Form Interrogatories, Set Two, on Defendant Kuniyoshi Investment, Inc. on October 23, 2025. Defendant failed to serve responses within the time prescribed by the Code of Civil Procedure. As a result, Defendant waived any objections to the discovery requests, and Plaintiff was entitled to seek an order compelling responses. (Code Civ. Proc., §§ 2030.290, 2033.280.)

Defendant did not file a timely written opposition to the Motion. Although Defendant ultimately served responses on or about April 27, 2026, more than three months after the Motion was filed and served, that belated compliance does not excuse its failure to comply with the statutory deadline or negate the necessity of the Motion. The record reflects that Plaintiff was required to file the Motion to obtain the requested discovery.

Because Defendant served responses to the Requests for Admission before the hearing and those responses appear to be in substantial compliance with Code of Civil Procedure section 2033.220, an order deeming the matters admitted is not warranted. (Code Civ. Proc., § 2033.280.) However, Defendant's post-motion compliance does not preclude an award of monetary sanctions.

Monetary sanctions are mandatory where a party's failure to serve timely responses necessitates a motion to compel, unless the court finds that the sanctioned party acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., §§ 2023.030, 2030.290, subd. (c), 2033.280, subd. (c).) Defendant has made no showing of substantial justification for its failure to timely respond, nor has it identified any circumstances that would render sanctions unjust.

Plaintiff seeks $1,680.00 in monetary sanctions, representing four hours of attorney time at an hourly rate of $420.00. Counsel declares that three hours were reasonably expended preparing the Motion and one additional hour preparing the reply. The Court finds both the time expended and the hourly rate reasonable. Accordingly, Plaintiff is entitled to recover $1,680.00 in reasonable attorney's fees incurred as a result of Defendant's discovery misuse.

IV. ORDER

Based on the foregoing, it is ordered that:

1. Plaintiff's Motion to Compel Defendant Kuniyoshi Investment, Inc.'s responses to Form Interrogatories, Set Two, is **MOOT.** Defendant Kuniyoshi Investment, Inc. has served responses to Form Interrogatories, Set Two. Those responses shall stand as Defendant's verified responses without objections to Form Interrogatories, Set Two.
2. Plaintiff's Motion to Have Request for Admissions, Set One, Deemed Admitted is **DENIED** as moot, given that Defendant Kuniyoshi Investment, Inc. served responses to Request for Admissions, Set One, before the hearing on this Motion in substantial compliance with California Code of Civil Procedure Section 2033.220.
3. Plaintiff's request for monetary sanctions is **GRANTED**.
4. Defendant Kuniyoshi Investment, Inc. and its counsel of record (if any) are jointly and severally **ORDERED** to pay monetary sanctions to Plaintiff Jong Hee Park in the amount of **$1,680.00**, representing reasonable attorney's fees incurred by Plaintiff as a result of Defendant's failure to serve timely responses to Request for Admissions, Set One, and Form Interrogatories, Set Two.
5. Said monetary sanctions in the amount of $1,680.00 shall be paid to Plaintiff's counsel, Noel D. Hibbard, at the Law Offices of Noel Hibbard, 2099 Lincoln Ave Ste 202, San Jose, CA 95125, within **thirty (30) days** of the date of this Order.
6. Failure to pay the monetary sanctions as ordered may result in the imposition of further sanctions, including but not limited to issue sanctions, evidence sanctions, or terminating sanctions pursuant to California Code of Civil Procedure Section 2023.030.

IT IS SO ORDERED.

Date: July 31, 2026

Hon. Panteha E. Saban
Superior Court of the State of California,
County of Santa Clara

<u>Line 5 & 6</u>

Case Name: Terry Kwong et al vs Elaine Yang et al

Case No.: 24CV445397

I. INTRODUCTION

This order addresses two discovery motions heard on July 31, 2026: (1) Plaintiff Terry Kwong's Motion to Compel Further Responses from Defendant Elaine Yang to Requests for Admissions, Set One, Nos. 5, 6, and 7 ("Motion 1"); and (2) Cross-

Complainant Elaine Yang's Omnibus Motion to Compel Further Responses from Cross-Defendants Joric Pang and Campbell Land Company, L.P. to Requests for Production of Documents, Set One, Nos. 23 and 35 ("Motion 2"). The Court has reviewed all moving, opposition, and reply papers, and considered the arguments of counsel.

II. PROCEDURAL HISTORY

On August 16, 2024, Plaintiffs Terry Kwong and Monica Suryoutomo filed their Complaint against Defendants Elaine Yang, Tiffany Wang, and ABC Consulting & Management, Inc. On June 2, 2025, Elaine Yang filed her Cross-Complaint against Cross-Defendants Terry Kwong, Monica Suryoutomo, Lily Pang, Joric Pang, and Campbell Land Company, L.P.

On May 9, 2025, Plaintiff Kwong served Requests for Admissions, Set One, on Defendant Yang. Yang served verified responses on June 24, 2025. Following extensive meet-and-confer efforts, Kwong filed Motion 1 seeking further amended responses to RFAs Nos. 5, 6, and 7 regarding borrowed funds and credit card purchases.

Yang served her Requests for Production of Documents, Set One, on Cross-Defendants Joric Pang and Campbell Land Company on August 15, 2025. Pang and Campbell Land served verified responses on September 23, 2025. After meet-and-confer discussions, the parties stipulated to narrow the dispute to RFP Nos. 23 and 35 only, seeking tax returns and K-1s dating to 1993 and ownership interest documents dating to 2009, with Yang withdrawing her sanctions request.

The parties have continued to engage in substantial good-faith efforts to narrow these disputes, as evidenced by the joint stipulation eliminating most issues and all sanctions requests.

On February 24, 2026, the Court held an Informal Discovery Conference at which it instructed the parties that seeking documents across decades prior to 2020 is inappropriate due to the four-year statute of limitations period. (Opp.Cross-Defendants Joric 3:16-25.) The Court indicated that documents pertaining to the Partnership's activities during specific periods prior to 2020 could potentially be relevant and, therefore, discoverable. (Decl. of Veena A. Bansal 4:1-4.) Following the IDC, Kwong agreed to limit his document requests to 2020 forward, resolving all Requests for Production originally at issue in his concurrent motion. (Opp. Cross-Defendants Joric 5:1-2.)

Yang's motion was originally broader, but following a joint stipulation filed July 20, 2026, Yang withdrew her motion against Lily Pang entirely and withdrew her sanctions request.

III. MOTION 1: PLAINTIFF TERRY KWONG'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS NOS. 5, 6, AND 7

A. Summary of the Parties' Arguments

1. Plaintiff Kwong's Arguments

Plaintiff Kwong seeks to compel Defendant Yang to provide further amended and verified responses to three Requests for Admissions concerning financial transactions involving the Milpitas Greens partnership.

RFA No. 5 requests Yang to "Admit that you have borrowed money from MILPITAS GREENS." RFA No. 6 requests Yang to "Admit that you have not repaid all money you borrowed from MILPITAS GREENS." RFA No. 7 requests Yang to "Admit that you have used MILPITAS GREENS's credit card to make purchases for yourself."

Kwong contends that Yang's responses are evasive and non-committal, failing to comply with the statutory requirement to admit, deny, or state in detail why she cannot respond. Specifically, Kwong argues that Yang's response to RFA No. 5 improperly focuses on whether borrowed amounts are "currently due or payable" rather than directly admitting or denying whether she borrowed money. Similarly, Yang's response to RFA No. 6 addresses whether amounts are presently due rather than whether she has repaid all borrowed funds. For RFA No. 7, Kwong asserts Yang's response is even more evasive, denying "improper" use of the credit card without directly admitting or denying personal purchases.

Kwong emphasizes that Yang never requested clarification about ambiguous terms during multiple meet-and-confer efforts, despite being provided with relevant credit card statements. Kwong relies on the statutory framework requiring straightforward admissions or denials, arguing that qualified responses circumvent the purpose of requests for admissions.

2. **Defendant Yang's Arguments**

Yang contends her responses are code-compliant and that she has acted in good faith by supplementing responses and producing extensive documentation. Yang argues the RFAs are vague, overbroad, compound, and call for legal conclusions.

For RFA No. 5, Yang admits that Milpitas Greens extended funds to her but asserts these are not currently due or payable and no demand for repayment has been made. For RFA No. 6, Yang denies that any amounts are due and payable or that demand has been made. For RFA No. 7, Yang denies using the credit card for any improper purpose and contends she reimbursed any accidental expenses.

Yang argues the requests are compound in nature, requiring her to admit or deny several factual premises simultaneously, making them improper. Yang further contends that RFAs are intended to eliminate undisputed matters, not to force admissions to disputed facts, and that when a party objects but also provides complete responses, there is nothing left to compel.

Yang emphasizes that discovery is ongoing and she reserves the right to supplement her responses. She has produced 184 documents on May 13, 2026, 306 additional documents on June 16, 2026, and 206 more documents totaling approximately 6,416 pages on July 13, 2026.

B. Legal Standards

California Code of Civil Procedure section 2033.290 authorizes a motion to compel further responses when an answer to a request for admission is evasive or incomplete, or when an objection is without merit or too general. (Cal Code Civ Proc § 2033.290) The responding party must provide a direct answer or set forth in detail the reasons for inability to admit or deny.

Each answer must be as complete and straightforward as the information reasonably available to the responding party permits. If a responding party does not have sufficient information to admit the matter, the party must set forth the particularity the reasons why the party cannot reasonably obtain that information.

C. Analysis

The Court finds that Yang's responses to RFAs Nos. 5, 6, and 7 are qualified and do not directly admit or deny the facts as phrased in the requests.

RFA No. 5 asks a straightforward factual question: whether Yang has borrowed money from Milpitas Greens. Yang's response shifts the inquiry to whether borrowed amounts are "currently due or payable" or subject to demand. This reformulation evades the core question. The request does not ask about current obligations or repayment schedules; it asks whether Yang has borrowed money. A party may borrow funds that are not currently due and still admit to having borrowed them. Yang's response thus provides an incomplete answer to the question actually posed.

RFA No. 6 similarly asks whether Yang has repaid all borrowed money. Yang's response again redirects to whether amounts are "due and payable" or demanded. The question is historical and factual: has repayment occurred? Yang's response addressing the present obligation status rather than the repayment history is non-responsive.

RFA No. 7 requests Yang to admit she has used the partnership's credit card to make purchases for herself. Yang's response denies using the card for "any improper purpose" and claims reimbursement for "accidental expenses." This response adds qualifications not present in the request. The RFA asks about personal purchases, not improper ones. Whether a purchase was proper or improper, or whether it was later reimbursed, does not answer whether Yang used the credit card for personal purchases. Yang's reframing substitutes a different question for the one asked.

Yang's objections that the RFAs are vague, compound, or call for legal conclusions are not persuasive. The requests are direct inquiries about objective facts: borrowing money, repaying money, and using a credit card. These are not complex legal constructs requiring interpretation. While Yang argues the requests are compound, each RFA asks a single factual question. RFA No. 5 does not ask multiple questions; it asks whether Yang borrowed money. RFA No. 6 asks whether she has repaid all borrowed money, a single historical fact. RFA No. 7 asks whether she used the credit card for personal purchases, again, a unitary factual inquiry.

Yang's argument that she did not request clarification during meet-and-confer is significant. If the requests were truly ambiguous or vague, Yang had ample opportunity to seek clarification. Her failure to do so undermines the claim that the requests are deficient.

Yang's extensive document production, while commendable for advancing discovery, does not cure inadequate responses to requests for admissions. Document production and requests for admissions serve different purposes. The latter are designed to narrow issues for trial by establishing uncontroverted facts. Providing documents while simultaneously offering qualified, non-responsive answers to RFAs does not satisfy the statutory obligation.

The Court recognizes Yang's argument that RFAs should not be used to force admissions to disputed facts. However, the requests here seek basic factual admissions about financial transactions. If Yang disputes that she borrowed money, she should deny it. If she admits borrowing but disputes current liability, she should admit the borrowing and, if necessary, explain why no current liability exists. The statute requires direct answers followed by necessary qualifications, not substitution of different questions.

Plaintiff Terry Kwong's Motion to Compel Further Responses to Requests for Admissions nos. 5, 6, and 7 is **GRANTED**. Defendant Elaine Yang shall serve further amended verified responses to Requests for Admissions, Set One, Nos. 5, 6, and 7 within ten (10) days of the date of this order. The responses shall directly admit or deny each request as phrased, or state in detail the reasons Yang cannot admit or deny after making reasonable inquiry. Any objections must be specific and supported by factual detail demonstrating why the request is objectionable.

IV. MOTION 2: CROSS-COMPLAINANT ELAINE YANG'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION NOS. 23 AND 35

A. Summary of the Parties' Arguments

1. Yang's Arguments

Yang seeks to compel Cross-Defendants Joric Pang and Campbell Land Company, L.P. to produce documents responsive to two requests: RFP No. 23, seeking all federal, state, and local income tax returns, including K-1s and Form 1099s; and RFP No. 35, seeking documents showing all entities in which Pang or Campbell Land have held any ownership or equity interest.

Yang argues these documents are fundamental to partnership accounting and directly relevant to her claims of self-dealing, undisclosed distributions, and breach of fiduciary duty. Yang contends that K-1s and 1099s are essential for tracing partnership funds, determining whether assets were diverted, and evaluating the partnership's ownership and voting structure.

Yang emphasizes that the statute of limitations does not bar discovery of pre-2020 documents, particularly in partnership cases involving continuing fiduciary duties and alleged concealed misconduct. Yang asserts her Cross-Complaint adequately alleges facts supporting delayed discovery, including concealment of transactions and lack of access to full partnership records.

Yang argues the tax return privilege is not absolute and is waived when the taxpayer's finances are directly at issue. Yang contends Pang's objections of overbreadth and burden are unsupported by any factual showing or declaration. Yang points to case law supporting broad discovery in partnership and fiduciary duty cases.

Yang disputes Pang's characterization of the Court's February 24, 2026 IDC guidance, arguing the Court did not impose a categorical 2020 cutoff but indicated documents pertaining to specific partnership activities during periods prior to 2020 could be relevant and discoverable.

2. Pang and Campbell Land's Arguments

Pang and Campbell Land object to the requests as overbroad, unduly burdensome, not reasonably calculated to lead to discovery of admissible evidence, and calculated to harass. They argue the Court's IDC guidance bars pre-2020 documents due to the four-year statute of limitations.

Pang and Campbell Land assert they have produced all responsive, non-privileged documents from 2020 through September 2025. They contend Yang, as a former general partner, had access to all relevant partnership records and financial documents during her tenure, undermining any claim of inability to obtain documents earlier.

Pang and Campbell Land argue Yang cannot rely on the delayed discovery rule because she failed to allege facts sufficient to support this doctrine in her Cross-Complaint. They emphasize that Yang's claims alleging wrongful acts since approximately 1995 are barred by the statute of limitations, and documents must be limited accordingly.

Pang and Campbell Land cite legal standards requiring relevance, specificity, and limits on fishing expeditions. They note that Plaintiff Kwong agreed not to seek documents prior to 2020 in his concurrent motion, suggesting Yang should be held to the same temporal limitation.

B. Legal Standards

A party seeking to compel further responses to requests for production must set forth specific facts showing good cause justifying the discovery sought. (Cal Code Civ Proc § 2031.310.) The burden is on the moving party to show both relevance to the subject matter and specific facts justifying discovery.

A party may discover any matter, not privileged, that is relevant to the subject matter involved in the pending action if the matter is either admissible in evidence or reasonably calculated to lead to the discovery of admissible evidence. While the scope of civil discovery is broad, it is not limitless. The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. (Cal Code Civ Proc § 2017.020.) The responding party bears the burden of demonstrating that discovery should be limited.

C. Analysis

The Court finds that Yang has demonstrated the relevance and discoverability of the requested financial records. K-1s, Form 1099s, and entity ownership documents are fundamental categories of financial evidence in a partnership dispute involving allegations of self-dealing, breach of fiduciary duty, undisclosed distributions, and improper use of partnership funds.

Yang's Cross-Complaint alleges that beginning in 1989 and continuing through the 1990s, Pang and others used partnership funds to purchase limited-partner interests without disclosure or reimbursement, while delaying the recording of partnership documents and obscuring the true ownership and voting structure of Milpitas Greens. The Cross-Complaint alleges Yang contributed substantial funds in 1993 to prevent the partnership's bankruptcy, that Pang concealed transactions involving partnership assets affecting ownership interests and distributions, and that by approximately 1994 Pang participated in additional financial arrangements involving partnership funds.

These allegations, if proven, would directly implicate the financial records Yang seeks. K-1s and 1099s reflect distributions and income allocations over time. Entity ownership documents would reveal whether Pang used partnership funds to acquire interests in related entities or whether conflicts of interest existed. These are precisely the types of records essential to proving or defending against the claims at issue.

Pang and Campbell Land have produced documents from 2020 through September 2025. The disputed issue is whether Yang is entitled to documents dating back to 1993 (for tax returns and K-1s) and 2009 (for entity ownership documents).

1. The Court's IDC Guidance

The parties dispute the meaning of the Court's February 24, 2026 IDC guidance. Yang asserts the Court did not impose a categorical 2020 cutoff but indicated documents pertaining to specific partnership activities during periods prior to 2020 could be relevant and discoverable. Pang and Campbell Land argue the Court instructed that seeking documents across decades prior to 2020 is inappropriate due to the four-year statute of limitations.

The Court clarifies its IDC guidance. The Court did not establish a bright-line rule that no documents prior to 2020 are discoverable. The Court indicated that the four-year statute of limitations is a relevant consideration in evaluating temporal scope, and that requests spanning multiple decades require a correspondingly strong showing of need and relevance to specific claims or defenses. The Court emphasized that discovery should be proportional and that parties seeking historical records must demonstrate why those specific records are necessary to prosecution or defense of particular claims.

2. Temporal Scope and Proportionality

Yang seeks 33 years of tax records (1993–present) and 17 years of entity ownership documents (2009–present). This is an extraordinarily broad temporal scope. While Yang has articulated general relevance to partnership accounting and fiduciary duty claims, the requests as framed are insufficiently tailored to specific claims, defenses, transactions, or time periods.

Yang argues the statute of limitations does not limit discovery scope, citing authority that accrual of claims is distinct from temporal scope of relevant discovery. This is correct as a general proposition. Evidence from outside the limitations period may be relevant to proving claims within the period or establishing patterns, knowledge, or intent. However, this principle does not eliminate the requirement that the requesting party demonstrate specific relevance and proportionality.

Yang has not identified which specific alleged acts or transactions in her Cross-Complaint require tax returns and K-1s from 1993, or entity ownership documents from 2009. Yang has not explained what specific accounting questions remain unanswered by the 2020–2025 documents already produced. Yang has not addressed proportionality—why the importance of the discovery justifies the burden of producing decades of historical records.

3. **Access to Records and Delayed Discovery**

Pang and Campbell Land argue Yang, as a general partner from 1993 until her removal in 2024, had access to partnership books, records, and financial documents, including K-1s issued by Milpitas Greens. This access undermines Yang's ability to invoke delayed discovery for pre-2020 documents.

Yang responds that access to some records does not equal knowledge of all misconduct, particularly where the responding party controls the accounting and is alleged to have deliberately concealed transactions. Yang alleges Pang and Kwong intentionally delayed recording partnership documents and used partnership funds to purchase additional limited-partner interests while concealing that fact from Yang.

The Court finds Yang's delayed discovery allegations insufficient as currently pleaded to support discovery of 33 years of tax records and 17 years of entity ownership documents. While the Cross-Complaint alleges concealment in general terms, it does not plead facts showing Yang could not, despite reasonable diligence, have discovered the specific information reflected in pre-2020 K-1s, 1099s, and entity ownership documents during her 31 years as general partner with access to partnership records.

4. **Good Cause and Specificity**

Yang must demonstrate good cause for the requested discovery by setting forth specific facts showing why each category of documents for each time period is necessary. (Cal Code Civ Proc § 2031.310.) Yang's showing here is general rather than specific. Yang argues the documents are needed for "a complete partnership accounting" and to trace funds and evaluate ownership structure. These are valid purposes, but Yang has not connected them to specific time periods, specific transactions, or specific claims and defenses with the particularity required to justify decades of historical financial records.

For example, Yang's Cross-Complaint alleges misconduct beginning in 1989 and continuing through the 1990s involving use of partnership funds to purchase interests and concealment of transactions. If Yang seeks pre-2020 K-1s to establish a pattern of improper distributions or to trace specific transfers of partnership funds to acquire ownership interests, Yang must identify which years, which transactions, and why. If Yang seeks entity ownership documents from 2009 forward because a judgment was entered that year and Yang contends Pang used entities to circumvent the judgment, Yang must specify which entities, which transactions, and why documents for the entire 17-year period are necessary rather than a more focused temporal scope.

5. **Less Intrusive Alternatives**

Pang and Campbell Land have produced all responsive documents from 2020 through September 2025, covering the limitations period. Yang has not adequately explained why these documents are insufficient to establish her claims. If Yang contends that specific historical transactions require corroboration or that patterns extending before 2020 are probative, Yang must explain what those transactions are, why they require pre-2020 documents, and why documents already in her possession or available from other sources do not suffice.

Yang was a general partner with access to partnership records for decades. Yang presumably possesses some historical partnership documents, financial statements, and tax returns from her tenure. Yang has not explained why her own records, combined with the 2020–2025 production from Pang, are insufficient.

D. Ruling on Motion 2

Cross-Complainant Elaine Yang's Motion to Compel Further Responses to Requests for Production Nos. 23 And 35 is **DENIED WITHOUT PREJUDICE**. Yang may file a narrowly tailored renewed motion supported by a specific factual showing of good cause. To succeed on any renewed motion, Yang must address the following with particularity:

a. Necessity of Specific Document Categories. Yang must identify the particular categories of documents sought and explain with specific facts why each category is necessary to the prosecution of her cross-claims or defense of claims against her. General assertions that documents are needed for "a complete partnership accounting" are insufficient. Yang must explain what specific accounting questions remain unanswered by the documents already produced for the 2020–2025 period.

b. Linkage to Claims or Defenses. Yang must demonstrate a direct nexus between the specific documents sought and particular claims or defenses in the operative pleadings. The Cross-Complaint alleges wrongful acts since approximately 1995. If Yang seeks pre-2020 documents, she must identify which specific alleged acts or transactions require those documents and why.

c. Proportionality and Importance. Yang must address the proportionality of the discovery sought. A request for 33 years of tax records or 17 years of ownership documents requires a correspondingly strong showing of need. Yang must demonstrate that the importance of the requested discovery to the resolution of the litigation justifies the burden and expense of producing decades of historical records. The scope of civil discovery, while broad, is not limitless.

d. Why Less Intrusive Discovery Is Insufficient. Yang must explain why documents within the limitations period (2020–2025), which have been fully produced, are insufficient to establish her claims. If specific historical transactions require corroboration, Yang must explain what those transactions are and why documents already in her possession or available from other sources (given her years of access to partnership records as a general partner) do not suffice.

e. Temporal Specificity. Consistent with this Court's IDC guidance, any renewed motion must identify specific time periods for which documents are sought and explain why each period is relevant, rather than seeking blanket production across decades.

Yang may file a narrowly tailored renewed motion consistent with the guidance set forth above.

V. CONCLUSION

For the foregoing reasons, the Court rules as follows:

1. **Motion 1 (Kwong v. Yang—Requests for Admissions Nos. 5, 6, 7)** is **GRANTED**. Defendant Yang shall serve further amended verified responses within ten (10) days.
2. **Motion 2 (Yang v. Pang/Campbell Land—Requests for Production Nos. 23, 35)** is **DENIED WITHOUT PREJUDICE**. Cross Complainant Yang may file a renewed motion supported by a specific factual showing of good cause consistent with the guidance set forth in Section IV.D of this order and the court's prior IDC guidance.

<u>Line 7</u>
Case Name: Cicelyn Slade vs Asad Warraich et al

Case No.: 22CV394951

I. BACKGROUND

This matter comes before the Court on Judgment Creditor James E. Shelton's Motion for Order Allowing Wage Garnishment on Non-Debtor Spouse pursuant to Code of Civil Procedure § 706.109. The motion was filed on February 26, 2026, with proper notice to Aleena Khan, the non-debtor spouse of judgment debtor Asad Warraich. No opposition has been filed.

The underlying judgment was entered on February 16, 2022, arising from a Labor Commissioner Order awarding $12,530.40 to plaintiff Cicelyn Tejada Slade for unpaid wages, liquidated damages, and waiting time penalties for work performed from February 1, 2017, to March 25, 2018. The judgment was assigned to Shelton on October 28, 2024. As of the filing date of the motion, $17,580.32 remains outstanding with accrued interest.

II. LEGAL STANDARD

California Code of Civil Procedure Section 706.109 authorizes a judgment creditor to obtain an earnings withholding order against a non-debtor spouse by court order after a noticed motion. (Code. Civ. Proc. § 706.109.) The purpose of such a hearing is to determine the nature of the debt, the earnings, and whether the wages are subject to garnishment. The substantive basis for such relief is found in California's community property statutes.

Under California Family Code section 760, all property acquired by a married person during marriage while domiciled in California is community property. (Fam. Code § 760.) This includes earnings from employment during the marriage.

Fam. Code § 910(a) provides that the community estate is liable for a debt incurred by either spouse before or during marriage, regardless of which spouse has management and control of the property and regardless of whether one or both spouses are parties to the debt or to a judgment for the debt. (Fam. Code § 910; Mem. in Supp. 4:18-21.)

Fam. Code § 903 defines when a debt is "incurred": in the case of a contract, at the time the contract is made; in the case of a tort, at the time the tort occurs; and in other cases, at the time the obligation arises. (Fam. Code § 903.)

Fam. Code § 911(a) provides a limited protection, stating that the earnings of a married person during marriage are not liable for a debt incurred by the person's spouse before marriage. (Fam. Code § 911.) This protection applies only to pre-marital debts, not to debts incurred during the marriage.

III. FACTUAL FINDINGS

Having considered the evidence submitted by Judgment Creditor, in the declaration of James E. Shelton, the Court makes the following findings of fact:

A. Ongoing Marriage

Judgment debtor Asad Warraich has been married to Aleena Khan for at least eighteen years, from at least August 28, 2007, to the present. Mem. in Supp. 2:15-17. The evidence establishes:

1. A 2007 Interspousal Transfer Grant Deed identifying Khan as "spouse of grantee" when Warraich transferred property to her. (Mem. in Supp. 2:18-22; Declaration of James E. Shelton.)

2. A 2022 Grant Deed naming both Warraich and Khan as trustees of their revocable living trust. (Mem. in Supp. 2:23-28; Decl. of James E. Shelton.)

3. Warraich's website profile stating that Khan "treasures precious moments with her husband and three children." (Mem. in Supp. 4:1-2; Decl. of James E. Shelton.)

4. The judgment debtor's own admission to Plaintiff that he is married and his wife works as a nurse practitioner. (Mem. in Supp. 3:19-20; Decl. of James E. Shelton.)

No evidence has been presented of divorce, legal separation, or termination of the marriage. (Mem. in Supp. 5:9-11; Decl. of James E. Shelton.)

B. Debt Incurred During Marriage

The underlying judgment arises from unpaid wages for work performed from February 1, 2017, to March 25, 2018. (Mem. in Supp. 5:12-16; Decl. of James E. Shelton.) This period falls squarely within the marriage, which commenced by at least August 28, 2007. Under Family Code § 903, the employment wage obligation was incurred when the obligation arose—when the work was performed and wages became due. (Fam. Code § 903.) The debt was therefore incurred during the marriage.

C. Nature of the Debt

The judgment comprises unpaid minimum wages, liquidated damages, and waiting time penalties under California Labor Code. Final Judgment. These are statutory obligations arising from the employment relationship.

D. Khan's Earnings Are Community Property

Aleena Khan is a Nurse Practitioner with a DNP degree who is currently employed at UCSF Health and Contra Costa Oncology. (Mem. in Supp. 3:21-25; Decl. of James E. Shelton.) Her earnings from this employment during the ongoing marriage are presumptively community property subject to enforcement under Fam. Code § 760.

E. No Opposition, Exemption, or Hardship Shown

No opposition has been filed by Aleena Khan or on her behalf. No evidence has been presented of exemptions, hardship, or other circumstances that would preclude or limit wage garnishment.

IV. DISCUSSIONS

Based on the foregoing findings, the Court concludes that the requirements for spousal wage garnishment under Code Civ. Proc. § 706.109 and Fam. Code. § § 760, 903, and 910 are satisfied. Khan's earnings from her current employment constitute community property because they were acquired during marriage while the spouses were domiciled in California. (Fam. Code, § 760.) The underlying wage debt was incurred during the marriage because the work was performed and the wages became due in 2017-2018, after the parties married. (Fam. Code, § 903.) Accordingly, the community estate is liable for the debt because it was incurred by one spouse during marriage, regardless of whether both spouses are parties to the debt or judgment. (Fam. Code, § 910 (a).)

Fam. Code § 911 does not apply because it protects a spouse's earnings only from debts incurred before marriage, whereas the debt here arose during the marriage. Nor does garnishment of Khan's wages violate due process. Fam. Code § 910 expressly permits satisfaction of a judgment against one spouse from community property, and Code Civ. Proc § 706.109 provides the required procedural safeguards by requiring notice and a court order before a non-debtor spouse's wages may be reached. Khan received notice of this motion and an opportunity to be heard, satisfying due process.

Finally, Fam. Code §910 contains no exception based on the nature of the debt, the non-debtor spouse's lack of involvement in the underlying transaction, or equitable considerations. This order authorizes issuance of an earnings withholding order only and does not determine any exemption from garnishment. Khan retains the right to claim any applicable state or federal exemptions during enforcement of the earnings withholding order.

V. FINDINGS AND ORDER

For the foregoing reasons, Judgment Creditor James E. Shelton's Motion for Order Allowing Wage Garnishment on Non-Debtor Spouse is **GRANTED**.

The Court finds that:

1. Asad Warraich and Aleena Khan have been married since at least August 28, 2007, and remain married.
2. The underlying debt was incurred during the marriage when work was performed and wages became due from February 1, 2017, to March 25, 2018.
3. Aleena Khan's earnings from her employment as a Nurse Practitioner at UCSF Health and Contra Costa Oncology are community property under Fam. Code § 760.
4. The community estate is liable for the judgment debt under Fam. Code § 910(a), regardless of the fact that Khan was not a party to the underlying judgment.

The Court therefore **ORDERS** that Judgment Creditor James E. Shelton is authorized to issue an earnings withholding order pursuant to Code Civ. Proc. § 706.109 against the wages of Aleena Khan to satisfy the judgment entered February 16, 2022, in the amount of $17,580.32 (as of February 26, 2026), plus accrued interest and costs.

This authorization is subject to Aleena Khan's right to claim applicable statutory exemptions under state and federal law when the earnings withholding order is served and the earnings withholding limitations and procedures set forth in Code Civ. Proc. §§ 706.050 et seq.

IT IS SO ORDERED.

Date: July 31, 2026

Hon. Panteha E. Saban
Superior Court of the State of California,
County of Santa Clara

Line 8
Case Name: John Roe 1 et al v. 3 Doe et al
Case No. 22CV408177

I. BACKGROUND AND PROCEDURAL POSTURE

This action was filed on December 5, 2022. Five pseudonymous plaintiffs—John Roe 1, John Roe 2, John Roe 3, John Roe 4, and John Roe 5—proceed under a Court-authorized pseudonym pursuant to an order dated February 3, 2023. Plaintiff John Roe 4 asserted claims arising from the misconduct alleged in the operative pleadings, including claims sounding in sexual assault, negligence, and negligent hiring, retention, and supervision. His claims were pending at the time of his death.

On February 26, 2026, Plaintiff John Roe 4 died in Los Gatos, California. The death certificate identifies the decedent's legal name and immediate cause of death as combined crush injury of torso and mechanical asphyxia, with the manner of death listed as accident. The certificate further identifies decedent's surviving spouse.

On March 5, 2026, counsel for Plaintiff John Roe 4 filed a Notice of Death of Plaintiff with this Court. The Notice stated that Plaintiff John Roe 4 had passed away and that his claims survive pursuant to California Code of Civil Procedure section 377.30. Counsel further stated they were in the process of determining the appropriate personal representative or successor in interest for purposes of substitution pursuant to Code Civ. Proc. § § 377.30–377.32.

On June 26, 2026, the Superior Court of California, County of Del Norte, issued an Order for Probate in Case No. PB267041 appointing Pamela M. Carmody as Executor of the Estate of John Roe 4. The Order found that all notices required by law had been given, that the decedent died testate on February 26, 2026, and that Ms. Carmody was appointed executor with full authority to administer the estate under the Independent Administration of Estates Act. The Order further provided that no bond was required.

Letters Testamentary issued to Ms. Carmody on June 26, 2026, certifying that she is authorized to administer the estate under the Independent Administration of Estates Act with full authority. The Del Norte County Clerk certified that the Letters issued to Ms. Carmody have not been revoked or annulled and remain in full force and effect.

On July 10, 2026, Plaintiff filed the present motion seeking an order substituting Pamela M. Carmody, Executor and personal representative of the Estate of John Roe 4, as Plaintiff John Roe 4 in this action. The motion was served electronically on all parties and their counsel of record on July 10, 2026.

No opposition appears in the record before the Court.

II. LEGAL STANDARD

A. Survival and Continuation of Actions

Except as otherwise provided by statute, a cause of action for or against a person is not lost by reason of the person's death. (Code Civ. Proc., § 377.20(a).) Code Civ. Proc. § 377.21 provides that a pending action or proceeding does not abate by the death of a party if the cause of action survives. (Code Civ. Proc., § 377.21.) The reference in section 377.31 to an action that is not abated does not mean that a survival cause of action is subject to abatement because heirs are not named or related claims are abated; rather, the reference is to those certain causes of action that abate due to the death of a plaintiff, such as in a marital dissolution proceeding when the spouse dies before judgment of marriage dissolution. (*Adams v. Superior Court* (2011) 196 Cal.App.4th 71, 79)

Code Civ. Proc. § 377.30 provides that a cause of action that survives the death of the person entitled to commence an action passes to the decedent's successor in interest and may be commenced by the decedent's personal representative or, if none, by the decedent's successor in interest. (Code Civ. Proc., §§ 377.30; Code Civ. Proc., § 377.30.) The statute establishes a standing hierarchy: the decedent's personal representative has priority, and if no personal representative exists, the decedent's successor in interest may act. (Code Civ. Proc., §§ 377.30; Code Civ. Proc., § 377.30.)

Code of Civil Procedure section 377.31 provides that on motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest. (Code Civ. Proc., § 377.31; *Adams v. Superior Court, supra,*196 Cal.App.4th at p. 79 .) The statute's use of "shall allow" indicates the court must grant the motion when statutory prerequisites are satisfied. (Code Civ. Proc., § 377.31.)

Courts have recognized that, under these survival statutes, "the personal representative or successor in interest has an absolute right to be substituted for the decedent." (*Adams v. Superior Court*, supra, 196 Cal.App.4th at p.79 .)

B. Definition and Authority of Personal Representative

California Probate Code section 58 defines "personal representative" to include an executor. (Prob. Code, § 58(a).) Prob. Code § 9820 authorizes the personal representative to commence and maintain actions and proceedings for the benefit of the estate, and to defend actions and proceedings against the decedent, the personal representative, or the estate. (Prob. Code, § 9820.)

As a personal representative of the deceased, the executor may maintain the action on behalf of the heirs—that is, as "a statutory trustee to recover damages for the benefit of the heirs." (*Adams v. Superior Court*, supra, 196 Cal.App.4th at p.78 .) Unlike a wrongful death claim, the survival statutes do not create a cause of action but merely prevent the abatement of the decedent's cause of action and provide for its enforcement by the decedent's personal representative or successor in interest. (*Ibid.)* A survival action "is not a new cause of action that vests in the heirs on the death of the decedent. It is instead a separate and distinct cause of action which belonged to the decedent before death but, by statute, survives that event." (*Ibid.*)

C. Court's Discretionary Authority

Code Civ. Proc. § 377.33 provides that the court in which an action is commenced or continued under this article may make any order concerning parties that is appropriate to ensure proper administration of justice in the case. (Code Civ. Proc., § 377.33.) This statute authorizes the court to make "any order concerning parties that is appropriate to ensure proper administration of justice in the case," providing broad equitable discretion. (*Ibid.)*

D. Recoverable Damages

Code Civ. Proc. § 377.34 (a), provides that in an action or proceeding by a decedent's personal representative or successor in interest on the decedent's cause of action, the damages recoverable are limited to the loss or damage that the decedent sustained or incurred before death, including any penalties or punitive or exemplary damages that the decedent would have been entitled to recover had the decedent lived, and do not include damages for pain, suffering, or disfigurement. (Code Civ. Proc., § 377.34.) However, subdivision (b) of the same section provides an exception: notwithstanding subdivision (a), damages recoverable may include damages for pain, suffering, or disfigurement if the action or proceeding was filed on or after January 1, 2022, and before January 1, 2026. (Code Civ. Proc., § 377.34.)

III. ANALYSIS

A. The Action Does Not Abate and the Causes of Action Survive

Plaintiff John Roe 4 died on February 26, 2026, after filing this action on December 5, 2022. His claims were pending at the time of his death. His death does not abate his surviving causes of action. Code Civ. Proc. § 377.21 provides that a pending action or proceeding does not abate by the death of a party if the cause of action survives. (Code Civ. Proc., § 377.21.) The claims asserted by Plaintiff John Roe 4, including sexual assault, negligence, and negligent hiring, retention, and supervision are causes of action that survive the death of the plaintiff. The action therefore does not abate.

B. Ms. Carmody Is the Duly Appointed Personal Representative with Priority to Continue the Action

Pamela M. Carmody has been appointed Executor of the Estate of John Roe 4 by order of the Superior Court of California, County of Del Norte, dated June 26, 2026. Letters Testamentary have issued to her and remain in full force and effect.. Under Prob. Code § 58, she is the decedent's "personal representative." (Prob. Code, § 58(a).)

Code Civ. Proc. § 377.30 establishes a standing hierarchy under which the decedent's personal representative has priority to continue an action, and if none exists, the decedent's successor in interest may act. (Code Civ. Proc., §§ 377.30; Code Civ. Proc., § 377.30.) Because Ms. Carmody is the court-appointed Executor, she has priority under the statute. Ms. Carmody declares that she is authorized to act on behalf of the Estate of John Roe 4 with respect to this pending action and that no other person has a superior right to be substituted as personal representative. The record contains no evidence to the contrary.

Under Prob. Code § 9820, Ms. Carmody, as personal representative, is authorized to maintain actions and proceedings for the benefit of the estate and to defend actions against the decedent, the personal representative, or the estate. (Prob. Code, § 9820.) She is therefore the proper party to continue this action on behalf of the Estate of John Roe 4.

C. Substitution Is Mandatory Under Section 377.31

Code Civ. Proc. § 377.31 provides that on motion after the death of a person who commenced an action, the court shall allow the pending action to be continued by the decedent's personal representative. (Code Civ. Proc., § 377.31; *Adams v. Superior Court*, supra, 196 Cal.App.4th at p.72 .) The statute's use of "shall allow" is mandatory; the court must grant the motion when the statutory prerequisites are satisfied. (Code Civ. Proc., § 377.31.) The statutory prerequisites for substitution have been satisfied. Plaintiff John Roe 4 commenced this action before his death, and the present motion was filed thereafter. Because the causes of action survive Plaintiff's death, the action has not abated. The motion further establishes that substitution is sought by the decedent's duly appointed personal representative. Accordingly, the requirements for substitution have been met.

D. Preservation of Pseudonym Is Appropriate

Plaintiff John Roe 4 proceeds in this action under a Court-authorized pseudonym pursuant to an order dated February 3, 2023. The probate records necessary to establish Ms. Carmody's appointment as Executor identify John Roe 4 by his legal name.

Code Civ. Proc. § 377.33 authorizes the Court to make any order concerning parties that is appropriate to ensure proper administration of justice in the case. (Code Civ. Proc., § 377.33.) Maintaining the existing pseudonym protections and referring to the decedent as John Roe 4 in the Court's order is consistent with the Court's prior orders and with the confidentiality interests already recognized in this case. The requested substitution does not require any change to the public caption beyond identifying Pamela M. Carmody as Executor and personal representative of the Estate of John Roe 4.

E. Recoverable Damages Include Pre-Death Pain, Suffering, and Emotional Distress

This action was filed on December 5, 2022. Code Civ. Proc. § 377.34, (b), permits recovery of damages for pain, suffering, or disfigurement in actions filed on or after January 1, 2022, and before January 1, 2026. (Code Civ. Proc., § 377.34.) Because this action was filed within that window, Plaintiff John Roe 4's pre-death pain, suffering, and emotional distress damages remain recoverable in this survival action, in addition to all other recoverable damages, penalties, costs, attorney's fees, and other relief permitted by law.

The recoverability of these damages does not depend on any connection between John Roe 4's cause of death and the underlying claims. A survival action carries forward the decedent's own pre-existing personal injury claim; his death determines who now prosecutes the claim but does not require that the cause of death relate to the underlying injury.

IV. ORDER

Good cause appearing, the Court ORDERS as follows:

1. Plaintiff's Motion to Substitute is GRANTED.
2. Pamela M. Carmody, Executor and personal representative of the Estate of John Roe 4, is hereby substituted as Plaintiff in place of John Roe 4, deceased.
3. The Court-authorized pseudonym "John Roe 4" is preserved. All future filings and orders shall refer to the decedent as "John Roe 4" and maintain the confidentiality protections previously ordered by the Court.
4. The caption shall be amended to reflect that Pamela M. Carmody, Executor and personal representative of the Estate of John Roe 4, is now the party plaintiff with respect to the claims previously asserted by John Roe 4. No other change to the public caption is required.
5. Pamela M. Carmody, as Executor and personal representative of the Estate of John Roe 4, is authorized to continue this action with respect to all claims previously asserted by decedent John Roe 4, including claims sounding in sexual assault, negligence, and negligent hiring, retention, and supervision.
6. The Estate of John Roe 4 may recover all damages that decedent sustained or incurred before his death, including pre-death pain, suffering, and

emotional distress, as well as any other recoverable damages, penalties, costs, attorney's fees, and other relief permitted by law.

7. No further motion or order is required to effectuate this substitution. The action shall proceed in all respects as to the Estate of John Roe 4 through its Executor and personal representative, Pamela M. Carmody.

IT IS SO ORDERED.

Date: July 31, 2026

Hon. Panteha E. Saban
Superior Court of the State of California,
County of Santa Clara